APPROVED ON OCTOBER 28, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

WEEKLY BUSINESS SESSION - October 21, 2026
9:00 a.m. - Anne G. Basker Auditorium
600 N.W. Sixth Street, Grants Pass, OR 97526

Present: Ron Smith, Chair-Commissioner; Colene Martin, Vice-Chair-Commissioner; Gary Richardson, Commissioner; Nikole Guzman, Recorder

These are meeting minutes only. Only text enclosed in quotation marks reports a speaker's exact words.

Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 9:00 a.m. followed by the Pledge of Allegiance.

Items discussed were as follows:

1. **CALL MEETING TO ORDER: Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 9:00 a.m.**
2. **DECLARE A POTENTIAL CONFLICT OF INTEREST: Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest.**
3. **PUBLIC HEARING: In the Matter of Annexation to the Josephine Community Library District by Petition of Landowner, Without Election – ORS 198.857**

Order Number	Petitioner	Assessor Map/Tax Lot	Acres
2026-052	Robert L. and Diane Miller Family Revocable Living Trust	38-07-34-D0-000110-00	5.05
2026-053	Maria Renee Nevills	37-06-17-00-001001-00	31.30

Chair Smith opened the public hearing at 9:01 a.m. and read the two Orders into the record: Order No. 2026-052, Robert L. and Diane Miller Family Revocable Living Trust, Assessor's Map and Tax Lot 38-07-34-D0-000110-00, 5.05 acres; and Order No. 2026-053, Maria Renee Nevills, Assessor's Map and Tax Lot 37-06-17-00-001001-00, 31.30 acres. Chair Smith opened the floor to public testimony (each person given three (3) minutes to speak, on this matter only):

Mike Pelfrey, Josephine County resident, spoke in opposition to the annexations. Describing himself as a financial professional of 37 years, he stated that property owners who annex into the Library District are asking to be taxed more without any say over the taxation, noted that the library levy on his own recently delivered tax statement had increased, and suggested that a $60 family library card is a less expensive alternative to annexing property into the district.

Winnie, Grants Pass resident, spoke in opposition. She stated that annexations of this kind prompted her own effort to withdraw her property from the Library District, which the Board had declined, questioned who is encouraging property owners to petition for annexation, and asked why owners may opt into the district while she cannot opt out.

Commissioner Martin moved to approve Order No. 2026-052, annexing the property of the Robert L. and Diane Miller Family Revocable Living Trust to the Josephine Community Library District. Commissioner Richardson seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

Commissioner Martin moved to approve Order No. 2026-053, annexing the property of Maria Renee Nevills to the Josephine Community Library District. Commissioner Richardson seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

Public Hearing closed at 9:05 a.m.

4. REQUESTS/COMMENTS FROM CITIZENS: *(Each person will be given three (3) minutes to speak)*

Stephen Fitch, Josephine County resident, stated that he is circulating a petition for an independent oversight committee so that criminal complaints are investigated and referred to the District Attorney for charging, and cited 18 U.S.C. § 1519, which makes the destruction, alteration or falsification of records with intent to obstruct a federal matter a federal crime. He asserted that the Board has an obligation to uphold constitutional rights and the power to remove other officials, and that failing to act on criminal complaints would expose the Commissioners to personal civil liability not covered by County insurance. He demanded that all County agencies operate in full compliance with the constitution and the law.

Mike Pelfrey, Josephine County resident, recommended that County department heads attend Board meetings on the dais, asserting that they direct the Board's actions. He repeated his request that the County adopt a proclamation declaring that it does not wish to be a sanctuary county, describing it as a simple statement that breaks no laws, and stated that it would be well received by constituents and that the State would not withhold funds over it. He urged the Commissioners to lead and to act on their constituents' requests.

Dave Blakely, Grants Pass resident, echoed Mr. Palfrey and asked the Board to stop allocating funds to the Sheriff and the District Attorney until, in his view, they perform their duties. He stated that the Sheriff had told him personally that he would not make an arrest within the City of Grants Pass on jurisdictional grounds, which Mr. Wakely disputed as a former law enforcement officer, and that the District Attorney had declined to pursue what he characterized as three state law violations by a sitting County Commissioner, citing a conflict of interest. He stated that citizens are frustrated, that the Board works for the public, and that the Board should use its authority over funding to bring the elected officials into compliance.

5. BOARD MAY REVIEW PUBLIC COMMENTS/QUESTIONS:

Commissioner Richardson addressed the Library District comments, explaining that state special district law allows individual property owners to petition to join a district but provides no equivalent right for an individual property to withdraw; the method available under the law is to gather petitions for a ballot measure to dissolve the district. He responded to Mr. Fitch that he does not believe the Board has authority to remove other elected officials, who are not County employees, and asked for documentation supporting that view. He told Mr. Wakely that he was not familiar with the matters raised and asked for details so he could look into them.

Commissioner Martin concurred with Commissioner Richardson, stating that the Board must follow Oregon law regarding the Library District, that the Board pursued that fight for three years, and that it now lies with the community. She stated that the Board recently adopted a resolution asking the State to be accountable and do its job, that it is not a sanctuary declaration, and that the election in 13 days offers voters a chance to change direction at the State level; she noted that the federal government has already reduced one County grant to a third of its prior funding and that jeopardizing State grants is not a risk she is willing to take. She explained that the Board does not control elected officials or their departments, though it oversees their budgets, facilities and position counts, and that cutting the Sheriff's funding would affect nearly 100 employees rather than one official. She stated that department heads do not direct the Board and asked anyone who believes otherwise to identify the department head so she can discuss it.

Chair Smith stated that under its charter the County is first an agent of the State, which binds the Board to state statutes and rules and has stripped the County of authority it held when it was established in 1856, before statehood. He noted that roughly 68 percent of the County's land was placed under federal management around the turn of the twentieth century, land that once fully funded the Sheriff and County government, and that the County now has three of the poorest zip codes in the state and a budget that is about 60 percent grants and fees. He stated that he has fought the federal land issues for much of his life, wished the County had its original authority, and thanked the speakers for their comments.

6. APPROVAL OF CONSENT CALENDAR:

a. Minutes (draft minutes are available for viewing in the Board's Office)

Admin Workshop – October 13, 2026

Weekly Business Session – October 14, 2026

Legal Counsel Update – October 15, 2026

Admin Workshop – October 15, 2026

4-H/Extension Service District – October 15, 2026

Commissioner Richardson moved to approve the Consent Calendar as presented. Commissioner Martin seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

7. **OTHER MATTERS:** *(ORS 192.640(1) ...Commissioners may introduce other matters for consideration by the entire board)*

Commissioners Richardson, Martin, and Smith reported no other matters.

8. **ANNOUNCEMENTS:** *(Commissioners may discuss any topic of interest to the general community)*

Chair Smith thanked those in attendance and stated that the Board is glad their voices can be heard. He announced that the state geological service will present to the Board and the public on October 30, 2026 at 10:00 a.m. in the Anne G. Basker Auditorium regarding its survey of historic mine tailings in Josephine County for strategic and rare-earth minerals, and invited the public to attend. Commissioners Richardson and Martin reported no announcements.

Weekly Business Session adjourned at 9:23 a.m.



Nikole Guzman, Recorder